

gagee or judgement creditor respectively shall claim, subject nevertheless as to devisees, to the provisions contained in the twelfth section thereof. Provided always, that nothing herein contained shall be construed to affect the rights of equitable mortgagees as now recognised in the Court of Chancery in this Province.

Proviso.

4. And, whereas the Doctrine of Tacking has been found to be productive of injustice, and requires correction: Be it enacted, That every deed and conveyance executed after the first day of January, one thousand eight hundred and fifty one, a memorial whereof shall be duly registered, and every judgement recovered after the date last aforesaid, a certificate whereof shall be duly registered, shall be deemed and taken as good and effectual both in Law and in Equity according to the priority of the time of registering such memorial or certificate; and, when no memorial of such deed or conveyance shall have been duly registered, then such deeds or conveyances shall be deemed and taken to be valid and effectual, both at Law and in Equity, according to the priority of time of execution.

Deeds, &c., to take priority according to the date of registry.

7. And be it enacted, That the Registry, or Registry of any certificate of judgment as *hereinbefore mentioned*, shall be deemed and taken to be a registry of such judgment for the purposes of this Act.

Certificate of judgment may be registered.

8. And be it enacted, That the Registry of any deed, conveyance, will or judgment *under the first recited Act*, or this Act, affecting any lands or tenements, shall in Equity constitute notice of such deed, conveyance, will or judgment, to all persons claiming any interest in such lands or tenements subsequent to such registry.

Registry to be deemed notice.

9. And be it enacted, That the Register of every County in Upper Canada shall, after the passing of this Act, enter in a separate book to be kept for that purpose the certificates of all judgments brought to him for registration, and prepare an alphabetical index thereto.

Separate book for registry of judgments.

As regards judgments which have already been registered under 9 Vic. Ch. 34, they may be rendered of the same effect as if registered under the above Act, by complying with the following provision of the first section, "that whenever any judgment shall have been registered before the passing of this Act, the party in whose favour the same shall have been rendered, may require the Registrar of any County to mark on the margin of such registry, and sign the same "Registered this—— day of

Re-entry of registration of judgments already registered.

—— A. D. eighteen, ——